

The Anna University of Technology, Tirunelveli Act, 2007

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State of Tamilnadu- Act

The Anna University of Technology, Tirunelveli Act, 2007

TAMILNADU

India

The Anna University of Technology, Tirunelveli Act, 2007

Act 28 of 2007

Published on 11 June 2010

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The Anna University of Technology, Tirunelveli Act, 2007

Tamil Nadu Act

28 of 2007

Statement of Objects and Reasons - Anna University, Tirunelveli Act, 2007 (Tamil Nadu Act

28 of 2007

). - In the Budget for the 2007-2008, among other things, it has been announced that with a view to further improving the quality of technical education in southern districts, a new technical university by the name "Anna University, Tirunelveli" will be established. Accordingly, it has been decided to bring out legislation-for the establishment of a new technical University at Tirunelveli having jurisdiction over the area comprising of the Districts of Tirunelveli, Kanyakumari, Thoothukudi, Virudhunagar and Madurai. Since no new Colleges are affiliated to [Anna University of Technology, Tiruchirappali] from the area comprising the Districts specified above, it has been decided to enable the students of the

Colleges within the Tirunelveli University area, on the date of commencement of the proposed legislation to continue their courses of study in Anna University, Chennai, appear for the examination conducted by Anna University, Chennai and to confer degree, diploma and other academic distinction by the Anna University, Chennai.

2. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 2007.

Statement of Objects and Reasons - Anna University, Tirunelveli Act, 2009 (Tamil Nadu Act 11 of 2009). - As per sub-section (1) of section 56 of the Anna University, Tirunelveli Act, 2007 (Tamil Nadu Act 28 of 2007

), it shall be the duty of the first Vice-Chancellor to make arrangements for constituting the Syndicate, Academic Council and such other authorities of the University within six months from the date of his appointment or such longer period, not exceeding one year as the Government may, by notification specify. Further, sub-section (5) of the said section 56 of the said Act enables the first Vice-Chancellor to appoint any officer or constitute any committee temporarily to exercise and perform any of the powers and duties of such authority under that Act and the statutes, until such time an authority is duly constituted under the said sub-section (1) of section 56. The period contemplated in the said sub-section (1) of section 56 has already expired. The Syndicate, Academic Council and other authorities of the University were not constituted before the said period and the temporary committees appointed by the Vice-Chancellor are exercising the powers and performing the duties of the authorities. The Government have, here fore, decided to provide a further period of one year to constitute the authorities of the University, by amending sub-section (1) of section 56 of the said Act. The Government have also decided to validate the powers exercised and duties performed by the temporary committees.

2. The Bill seeks to give effect to the above decisions.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 30th June 2009

Statement of Objects and Reasons - Tamil Nadu Universities laws (Amendment) Act, 2010. - Consequent on the establishment of the Unitary University and Anna University of Technology, Chennai, the Government have decided to change the name of Anna University, Tiruchirappalli, Anna University, Coimbatore and Arura University, Tirunelveli as Anna University of Technology, Tiruchirappalli, Anna University of Technology, Coimbatore and Anna University of Technology, Tirunelveli, respectively, and also to make provisions for the removal of Vice-Chancellor and to provide for arrangements to be made by Syndicate to discharge duties of Vice-Chancellor during his absence and to prescribe qualifications for the members of Selection Committee, by amending the Anna University, Tiruchirappalli Act, 2006 (Tamil Nadu Act

41 of 2006

), Anna University, Coimbatore Act, 2006 (Tamil Nadu Act

42 of 2006

) and Anna University, Tirunelveli Act, 2007 (Tamil Nadu Act

28 of 2007

), suitably.

2. The Bill seeks to give effect to the above decision.

Statement of Objects and Reasons - Tamil Nadu Universities Laws (Second Amendment) Act, 2010. - During the Budget Speech for the year 2010-2011, it has been announced that a Technical University will be established at Madurai. Accordingly, it has been decided to bring out legislation for the establishment of a Technical University at Madurai having jurisdiction over the area comprising of the districts of Madurai, Theni, Dindigul, Ramanathapuram and Sivagangai. Consequent on that, the Government also decided to exclude the districts of Madurai, Theni, Dindigul, Ramanathapuram and Sivagangai from the University area of the Anna University of Technology, Tiruchirappalli and Anna University of Technology, Tirunelveli.

2. Accordingly, it has been decided to amend the Anna University of Technology, Tiruchirappalli Act, 2006 (Tamil Nadu Act

41 of 2006

) and Anna University of Technology, Tirunelveli Act, 2007 (Tamil Nadu Act

28 of 2007

) so as to exclude the districts of Madurai, Theni, Dindigul, Ramanathapuram and Sivagangai.

3. The Bill seeks to give effect to the above decision.

Received the assent of the Governor on the 7th june 2007 and published in Part IV-Section 2 of the Tamil Nadu Government Gazette Extraordinary, dated the 8th june 2007.

An Act to provide for the establishment and incorporation of a Technical University at Tirunelveli.

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Fifty-eighth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title, application, extent and commencement.

(1)

This Act may be called the [Anna University of Technology, Tirunelveli Act]

[Substituted for 'Anna University, Tirunelveli Act' by Act No. 25 of 2010, dated 11.06.2010.]

, 2007.

(2)

It extends to the area comprising the districts of Tirunelveli, Kunyakumari, [Thoothukudi and Virudhunagar]

[Substituted for 'Thoothukudi, Virudhunagar and Madurai' by Act No. 28 of 2010, dated 11.06.2010.]

in the State of Tamil Nadu.

(3)

It applies to all colleges and institutions situated within the University area and affiliated to, or approved by, the University in accordance with the provisions of this Act or the statutes, ordinances and regulations made 'thereunder and also to all colleges and institutions deemed to be affiliated to, or approved by, the University under this Act.

(4)

It shall come into force on such date as the Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

"academic year" means a period of twelve months commencing of such date as the Syndicate may specify in respect of all the colleges and institutions under the control of the University or any particular college thereof;

(2)

"affiliated college" means a college or institution, situate within the University area and affiliated to the University and providing courses of study in engineering technology and allied sciences for admission to the examinations for degrees, diplomas or other academic distinctions of the University and includes a college deemed to be affiliated to the University under this Act and an autonomous college;

(3)

"aided college" means a college other than a Government college which receives aid out of the Government Funds;

(4)

"All India Council for Technical Education" means the Council established under section 3 of the All India Council for Technical Education Act, 1987 (Central Act 52 of 1987);

(5)

"appointed day" means such date as the Government may, by notification, appoint under sub-section (4) of section I;

(6)

"approved college" means a college situated within the University area and approved by the University and providing courses of study for admission to the examinations for titles and diplomas of the University and includes an institution deemed to be approved by the University under this Act;

(7)

"autonomous college" means any affiliated college designated as an autonomous college by the syndicate of the University;

(8)

"chairman" means the chairman of a faculty of the University.

(9)

"college" means a college or an institution established or maintained or approved by, or affiliated to, the University and providing any course of study or training in engineering, technology and allied sciences for admission to the examinations for degrees, diplomas or other academic distinctions of the University;

(10)

"constituent college" or "university college" means a college established or maintained by the University for providing any course of study or training in engineering technology and allied sciences for admission to the examination for degrees, diplomas or other academic distinctions;

(11)

"Director" means the head of research and development or the head of every centre of advanced study, as may be prescribed;

(12)

"Faculty" means a Faculty of the University;

(13)

"Government" means the State Government;

(14)

"hostel" means a unit of residence for the students of the University maintained or recognised by the University in accordance with the provisions of this Act and includes a hostel deemed to be recognised by the University under this Act;

(15)

"prescribed" means prescribed by the statutes, ordinances or regulations;

(16)

"Principal" means the head of an affiliated college;

(17)

"registered graduate" means a graduate registered under this Act;

(18)

"statutes", "ordinances" and "regulations" mean, respectively, the statutes, ordinances and regulations of the University made or continued in force under this Act.

(19)

"teachers" mean such [Assistant Professors, Associate Professors, Professors]

[Substituted for 'Lecturers, Readers, Assistant Professors' by Act No. 25 of 2010, dated 11.06.2010.]

, Directors and other persons giving instruction in University departments, colleges or laboratories, in affiliated or approved colleges or in hostels and librarians and other like persons as may be declared by the statute to be teachers;

(20)

"teachers of the University" mean persons appointed by the University to give instructions on its behalf;

(21)

"University" means the [Anna University of Technology Tirunelveli]

[Substituted for 'Anna University, Tirunelveli' by Act 25 of 2010, dated 11.6.2010.]

established under section 3;

(22)

"University area" means the area comprising the districts Tirunelveli, Kanyakumari, [Thoothukudi and Virudhunagar]

[Substituted for 'Thoothukudi, Virudhunagar and Madurai' by Act No. 28 of 2010, dated 11.06.2010.]

the State of Tamil Nadu;

(23)

"University centre" means any area within the University area containing one or more departments or colleges competent to engage in higher teaching and research work;

(24)

"University laboratory" means a laboratory maintained by the University, whether instituted by it or not, and intended for the carrying on and advancement of research work;

(25)

["University Assistant Professor, University Associate Professor "University Professor" means an Assistant Professor, Associate Professor or Professor, respectively, appointed or deemed to be appointed as such by the University in the

University departments, colleges and centres;]

[Substituted by Act No. 25 of 2010, dated 11.06.2010.]

(26)

"University library" means a library maintained by the University, whether instituted by it or not.

Chapter II

The University

3.

University.

(1)

There shall be established a University by the name The [Anna University of Technology, Tirunelveli]

[Substituted for 'Anna University, Tirunelveli' by Act 25 of 2010, dated 11.6.2010.]

.

(2)

The University shall be a body corporate, shall have perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

The Headquarters of the University shall be located within the limits of the Tirunelveli City Municipal Corporation or in any place within a radius of twenty-five kilometers around those limits.

4.

Powers, functions and objects of the University.

- The University shall have the following powers, functions and objects, namely:-

(1)

to provide facilities and offer opportunities for higher education in engineering, technology and allied sciences by instruction, training, research, development and extension and by such other means as university made deemed fit;

(2)

to provide for research and for the advancement and dissemination of knowledge in engineering, technology' and allied sciences;

(3)

to institute degrees, titles, diplomas and other academic distinctions in engineering, technology and allied sciences;

(4)

to hold examinations and to confer degrees, titles, diplomas and other academic distinctions on persons who have,-

(a)

pursued an approved course of study in a University college or laboratory or in an affiliated or approved college, unless exempted therefrom in the manner prescribed by the statutes and shall have passed the prescribed examinations of the University; or

(b)

carried out research in the University or in any other centre or institution recognized by the University under conditions prescribed;

(5)

to confer degrees, titles, diplomas and other academic distinctions on persons who shall have pursued an approved course of study in an autonomous college;

(6)

to hold examinations and to confer degrees, titles, diplomas and other academic distinctions on persons who shall have pursued an approved course of study by correspondence, whether residing within the University area or not, and to provide such lectures and instructions for persons not being residents within the University area under conditions prescribed;

(7)

to confer honorary degrees or other academic distinctions under conditions prescribed;

(8)

to institute, maintain and manage institutes of research University colleges, centres and laboratories, libraries, museums and other institutions necessary to carry out the objects of the University;

(9)

to affiliate colleges to the University under conditions prescribed and to withdraw such affiliation;

(10)

to approve colleges providing courses of study for admission to the examinations for titles and diplomas of the University under conditions prescribed and to withdraw such approval;

(11)

to designate or cancel any college as an autonomous college, in the manner and under conditions prescribed;

(12)

[to institute Assistant Professorships, Associate Professorships, Professorships and any other teaching posts required by the University and to appoint persons to such Assistant Professorships, Associate Professorships, Professorships and other teaching posts;]

[Substituted by Act No. 25 of 2010, dated 11.06.2010.]

(13)

to institute and award fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes in accordance with the statutes;

(14)

to establish and maintain or recognise hostels for students of the University and residential accommodation for the staff of the University and to withdraw any such recognition;

(15)

to exercise such control over the students of the University departments as will secure their health and well-being and discipline;

(16)

to hold and manage endowments and other properties and funds of the University;

(17)

to borrow money, with the approval of the Government, on the security of the property of the University for the purpose of the University;

(18)

to fix fees and to demand and receive such fees as may be prescribed;

(19)

to make grants from the funds of the University for the maintenance of a National Cadet Corps;

(20)

to institute and maintain a University Extension Board;

(21)

to institute and provide funds for the maintenance of-

(a)

a publication bureau;

(b)

an employment bureau;

(c)

students' unions;

(d)

University athletic clubs; and

(e)

other similar association;

(22)

to encourage co-operation among the colleges, laboratories and institutes within the University area and to co-operate with other University and other authorities in such manner and for such purposes as the University may determine;

(23)

to conduct evaluation or inspection of the colleges at required interval and to take suitable action as prescribed to improve academic excellence of the colleges;

(24)

to monitor academically the affiliated colleges in order to prescribe the control mechanism to achieve academic excellence; and

(25)

generally to do all such other acts and things as may be necessary or desirable to further objects of the University.

5.

Engineering colleges not to be affiliated to any other University and recognition of institution by University.

(1)

No college providing courses of study or training in engineering, technology and allied sciences within the university area shall be affiliated to any University in the State of Tamil Nadu other than the [Anna University of Technology, Tirunelveli]

[Substituted for 'Anna University, Tirunelveli' by Act 25 of 2010, dated 11.6.2010.]

.

(2)

No college affiliated to, or associated with, or maintained by, any other University in the State of Tamil Nadu shall be recognised by the University for any purpose except with the prior approval of the Government and the said other University concerned.

6.

Admission to University.

(1)

The University shall, subject to the provisions of this Act and the statutes, ha open to all persons.

(2)

Nothing contained in sub-section (1) shall require the University-

(a)

to admit to any course of study any person who does not possess the prescribed academic qualification or standard;

(b)

to retain on the rolls of the University any student whose academic record is below the minimum standard required for the award of a degree, diploma or other academic distinction; or

(c)

to admit any person or retain any student whose conduct is prejudicial to the interests of the University or the rights and privileges of other students and teachers.

7.

Visitation.

(1)

The Government shall have the right to cause an inspection or inquiry to be made, by such person or persons as they may direct, of the University, its buildings, laboratories, libraries, museums, workshops and equipments and of any institution maintained, recognised or approved by, or affiliated to the University and also of the examinations, teaching and other work conducted or done by the University, and to cause an inquiry to be made in respect of any matter connected with the University.

(2)

The Government shall, in every case, give notice to the University of their intention to cause such inspection or inquiry to be made and the University shall be entitled to be represented thereat.

(3)

The Government shall communicate to the University their views with reference to the results of such inspection or inquiry and may, after ascertaining the opinion of the University thereon advise the University upon the action to be taken and fix time limit for taking such action.

(4)

The University shall, within the time limit so fixed, report to the Government the action, if any, which is proposed to be taken or has been taken, upon the result of such inspection or inquiry or on the advise tendered by the Government. Such report shall be submitted within such time as the Government may direct.

(5)

Where the University does not take action to the satisfaction of the Government within a reasonable time, the

Government may, after considering any explanation furnished or representation made by the University, issue such directions as they may think fit and the University shall comply with such directions. In the event of the University not complying with such directions within such time as may be fixed in that behalf by the Government, the Government shall have power to appoint any person or body to comply with such directions and make such orders as may be necessary for the expenses thereof.

Chapter III

Officers of the University

8.

Officers of University.

- The University shall consist of the following officers, namely:-

(1)

The Chancellor;

(2)

The Pro-Chancellor;

(3)

The Vice-Chancellor;

(4)

The Directors;

(5)

The Chairman of Faculties;

(6)

The Registrar;

(7)

The Finance Officer;

(8)

The Controller of Examinations; and

(9)

Such other persons as may be declared by the statutes to be officers of the University.

9.

Chancellor.

(1)

The Governor of Tamil Nadu shall be the Chancellor of the University. He shall, by virtue of his office, be the Head of the University and shall, when present, preside at any convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them.

(2)

Where power is conferred upon the Chancellor to nominate persons to the authorities, the Chancellor shall, in consultation with the Vice-Chancellor, and to the extent necessary nominate persons to represent interests not otherwise adequately represented.

(3)

The Chancellor may, of his own motion or on application, call for and examine the record of any officer or authority of the University in respect of any proceeding to satisfy as to the regularity of such proceeding or the correctness, legality or propriety of any decision taken or order passed therein; and, if in any case, it appears to the Chancellor that any such decision or order should be modified, annulled, reversed or remitted for reconsideration, he may pass orders accordingly:

Provided that every application to the Chancellor for the exercise of the powers under this section shall be preferred within three months from the date on which the proceeding, decision or order to which the application relates was communicated to the applicant:

Provided further that no order prejudicial to any person shall be passed unless such person has been given an opportunity of making his representation.

(4)

No honorary degree or other distinction shall be conferred by the University upon any person without the prior approval

of the Chancellor.

(5)

The Chancellor shall exercise such other powers and perform such other duties as may be conferred on him by or under the provisions of this Act.

10.

Pro-Chancellor.

(1)

The Minister in-charge of Technical Education shall be the Pro-Chancellor of the University.

(2)

The Pro-Chancellor shall exercise such powers and perform such duties as may be conferred on him by or under this Act.

(3)

In the absence of the Chancellor, or during the Chancellor's inability to act, the Pro-Chancellor shall exercise all the powers and perform all the duties of the Chancellor.

11.

Vice-Chancellor.

(1)

Every appointment of the Vice-Chancellor shall be made by the Chancellor from out of a panel of three names recommended by the Committee referred to in sub-section (2) and such panel shall not contain the name of any member of the said Committee:

Provided that if the Chancellor does not approve any of the persons in the panel so recommended by the Committee, he may take steps to constitute another Committee, in accordance with sub-section (2) to give a fresh panel of three different names and shall appoint one of the persons named in the fresh panel as Vice-Chancellor.

(2)

For the purpose of sub-section (1), the Committee shall consist of three persons of whom one shall be nominated by the Chancellor, one shall be nominated by the Government and one shall be nominated by the Syndicate:

[Provided that no person shall be nominated to the Committee unless he is an eminent person in the field of judiciary, administration, Education or industry:

Provided further that the person so nominated shall not be a member of any of the authorities of the University.]

[Substituted by Act No. 25 of 2010, dated 11.06.2010.]

(3)

The Vice-Chancellor shall hold office for a period of three years and shall be eligible for reappointment, for another term of three years:

Provided that-

(a)

the Chancellor may direct that a Vice-Chancellor, whose term of office has expired, shall continue in office for such period, not exceeding a total period of one year, as may be specified in the direction;

(b)

the Vice-Chancellor may, by writing under his hand addressed to the Chancellor and after giving two months' notice, resign his office:

Provided also that a person appointed as Vice-Chancellor shall retire from office if, during the term of his office or any extension thereof, he completes the age of sixty-five years.

(4)

[When any temporary vacancy occurs in the office of the Vice-Chancellor or when the Vice-Chancellor is, by reason of illness, absence or for any other reason unable to exercise the powers and perform the duties of his office, the senior most Professor of the University shall exercise the powers and perform the duties of the Vice-Chancellor till the Syndicate makes the requisite arrangements for exercising the powers and performing the duties of the Vice-Chancellor.

(4A)

The Vice-Chancellor shall not be removed from his office on the ground of wilful omission or refusal to carry out the provisions of this Act, or abuse of the powers vested in him except by an order of the Chancellor passed after due enquiry ordered by the Government, by such person who is or has been,-

- (i)
a Judge of the High Court; or
- (ii)
an officer of the Government not below the rank of Chief Secretary to Government; or

(iii)
a Vice-Chancellor of any University in the State of Tamil Nadu, as may be appointed by the Government in which the Vice-Chancellor shall have an opportunity of making his representation against such removal.]

(5)
The Vice-Chancellor shall be a whole-time officer of the University and his emoluments and other terms and conditions of service shall be as follows:-

(a)
There shall be paid to the Vice-Chancellor a fixed salary of twenty-five thousand rupees per mensem or such higher salary as may be fixed by the Government, from time to time, and he shall be entitled without payment of rent to the use of a furnished residence throughout his term of office and no charge shall fall on the Vice Chancellor personally in respect of the maintenance of such residence. He may be entitled to such other perquisites as may be provided in the statutes.

(b)
The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Syndicate with the approval of the Chancellor, from time to time:

Provided that, where an employee of-

- (i)
the University; or
- (ii)
any other University or college or institution maintained by, or affiliated to any University, is appointed as Vice-Chancellor, he shall be allowed to continue to contribute to the Provident Fund to which he is a subscriber, and the contribution of the University shall be limited to what he had been contributing immediately before his appointment as Vice-Chancellor.

(c)
The Vice-Chancellor shall be entitled to travelling allowances at such rates as may be fixed by the Syndicate.

(d)
The Vice-Chancellor shall be entitled to earned, leave on full pay at one-eleventh of the periods spent by him on active service: Provided that on the date of expiry of the term of his office, if he had not availed of the earned leave before the date of expiry of the term of his office, be entitled to draw cash equivalent to leave salary after relinquishment of his office in respect of earned leave at his credit subject to a maximum of two hundred and forty days.

(e)
The Vice-Chancellor shall be entitled, on medical grounds or otherwise, to leave without pay for a period not exceeding three months during the term of his office:

Provided that such leave may be converted into leave on full pay to the extent to which he is entitled to earned leave under clause (d).

12.
Powers and duties of Vice Chancellor.

(1)
The Vice-Chancellor shall be the academic head and principal executive officer of the University.

(2)
The Vice-Chancellor shall, in the absence of the Chancellor and the Pro-Chancellor, preside at any convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them.

(3)
The Vice-Chancellor shall exercise control over the affairs of the University and shall be responsible for the due maintenance of discipline in the University.

(4)
The Vice-Chancellor shall ensure the faithful observance of the provisions of this Act and the statutes, ordinances and

regulations made thereunder and he may exercise all powers as may be necessary for the purpose.

(5)

The Vice-Chancellor shall give effect to the orders of the Syndicate regarding the appointment, suspension and dismissal of the teachers and other employees of the University and any other decision of the Syndicate.

(6)

In any emergency, which in the opinion of the Vice-Chancellor requires immediate action to be taken, he shall, by order, take such action as he deems necessary and shall, at the earliest opportunity, report the action taken to such officer or authority or body as would have, in the ordinary course, dealt with the matter:

Provided that no such order shall be passed unless the person likely to be affected has been given a reasonable opportunity of being heard.

(7)

Any person aggrieved by any order of the Vice-Chancellor under sub-section (6) may prefer an appeal to the Syndicate within thirty days from the date on which such order is communicated to him and the Vice-Chancellor shall give effect to the order passed by the Syndicate on such appeal.

(8)

The Vice-Chancellor shall be the ex-officio Chairman of the Syndicate, the Academic Council and the Finance Committee. The Vice-Chancellor shall be entitled to be present at, and to address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body.

(9)

The Vice-Chancellor shall have power to convene meetings of the Syndicate, the Academic Council and Finance Committee.

(10)

The Vice-Chancellor shall be responsible for the co-ordination and integration of teaching and research, extension education and curriculum development.

(11)

The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the statutes.

13.

Chairmen of Faculties and Directors.

- Every Chairman of a faculty, every Director shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the statutes.

14.

Registrar.

(1)

The Registrar shall be a whole-time salaried officer of the University appointed by the Syndicate. The qualifications and the method of recruitment shall be such as may be prescribed. The terms and conditions of service of the Registrar shall be as follows:-

(a)

The holder of the post of Registrar shall be an academician not lower in rank than that of a Professor in the University or in the Government Engineering College.

(b)

The Registrar shall hold office for a period of three years:

Provided that the Registrar shall retire on attaining the age of sixty years in the case of an University professor and fifty-eight years in the case of a Professor of any Government engineering college or on the expiry of the period specified in this clause, whichever is earlier.

(c)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed.

(d)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or for any other cause, unable to perform the duties of his office, the duties of the office of the Registrar shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(2)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers of the University and academic staff, as maybe specified in the orders of the Syndicate and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or withholding of increments:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in clause (a).

(c)

In any case where the inquiry discloses that penalty beyond the powers of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Syndicate against an order of the Vice-Chancellor imposing any penalty.

(d)

No appeal under clause (b) or clause (c) shall be preferred after the expiry of sixty days from the date on which the order appealed against was received by the applicant.

(3)

Save as otherwise provided in this Act, the Registrar shall be the ex-officio Secretary to the Syndicate, the Academic Council, the Faculties and the Boards of Studies, but shall not be deemed to be a member of any of these authorities.

(4)

It shall be the duty of the Registrar, -

(a)

to be the custodian of the records, the common seal and such other property of the University as the Syndicate shall commit to his charge;

(b)

to issue all notice convening meetings of the Syndicate, the Academic Council, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(c)

to keep the minutes of all the proceedings of the meetings of the Syndicate, the Academic Council, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(d)

to conduct the official correspondence of the Syndicate;

(e)

to supply to the Chancellor copies of the agenda of the meetings of the authorities of the university as soon as they are issued and the minutes of the proceedings of such meetings; and

(f)

to exercise such other powers and perform such other duties as may be specified in the statutes, the ordinances or the regulations or as may be required, from time to time, by the Syndicate or the Vice-Chancellor.

(5)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all processes, in such suits and proceedings, shall be issued to, and served on, the Registrar.

15.

Finance Officer.

(1)

The Finance Officer shall be a whole-time salaried officer of the University appointed by the Syndicate for such period as may be specified by the Syndicate in this behalf.

(2)

Every appointment of the Finance Officer shall be made by the Syndicate on the recommendations of the Vice-Chancellor on a panel of three names of Officers forwarded by the Government.

(3)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed.

(4)

The Finance Officer shall retire on attaining the age of fifty-eight years or on the expiry of the period specified by the Syndicate under sub-section (1), whichever is earlier.

(5)

When the office of the Finance Officer is vacant or when the Finance Officer, is by reason of illness, absence or for any other cause, unable to perform the duties of his office, the duties of the Finance Officer shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(6)

The Finance Officer shall be the ex-officio Secretary to the Finance Committee, but shall not be deemed to be a member of such Committee.

(7)

The Finance Officer shall,-

(a)

exercise general supervision over the funds of the University and shall advise the University as regards its financial policy; and

(b)

exercise such other powers and perform such other financial functions as may be assigned to him by the Syndicate or as may be prescribed:

Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding such amount as may be prescribed without the previous approval of the Syndicate.

(8)

Subject to the control of the Syndicate, the Finance Officer shall-

(a)

ensure that the limit fixed by the Syndicate for recurring and nonrecurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(b)

be responsible for the preparation of annual accounts, financial estimates and the budget of the University and for their presentation to the Syndicate;

(c)

keep a constant watch on the cash and bank balance and of investments;

(d)

watch the progress of the collection of revenue and advise on the methods of collection employed;

(e)

ensure that the registers of buildings, lands, furniture and equipments are maintained up to date and that stock checking is conducted, of equipments and other consumable materials in all offices, special centres, specialised laboratories and colleges maintained by the university;

(f)

bring to the notice of the Vice-Chancellor any unauthorised expenditure or other financial irregularity and suggest appropriate action to be taken against person at fault; and

(g)

call from any office, department, centre, laboratory and college maintained by the University, any information or returns that he may consider necessary for the performance of his duties.

(9)

The receipt of the Finance Officer or of the person or persons duly authorised in this behalf by the Syndicate for any money payable to the University shall be a sufficient discharge for payment of such money.

16.

Controller of Examinations.

(1)

The Controller of Examinations shall be an academican in the field of engineering, technology and allied sciences and a whole-time officer of the University appointed by the Syndicate on the recommendation of the Vice-Chancellor for such

period and on such terms and conditions as may be prescribed.

(2)

The Controller of Examinations shall exercise such powers and perform such duties as may be prescribed.

17.

Vice-Chancellor and other officers, etc. to be public servants.

- The Vice-Chancellor, the Registrar, the Finance Officer, the Controller of Examinations and other employees of the University shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code (Central Act XLV of 1860).

Chapter IV

Authorities of the University

18.

Authorities of the University.

- The authorities of the University shall be the following, namely:-

(1)

The Syndicate;

(2)

The Academic Council;

(3)

The Finance Committee;

(4)

The Planning Board;

(5)

The Boards of Studies;

(6)

The Faculties; and

(7)

Such other bodies as may be declared by the statutes to be the authorities of the University.

19.

Disqualification for membership.

(1)

No person shall be qualified for election or nomination as a member of any of the authorities of the University, if on the date of such election or nomination, he is,-

(a)

of unsound mind or a deaf-mute; or

(b)

an applicant to be adjudicated as an insolvent or an undischarged insolvent; or

(c)

sentenced by a criminal Court to imprisonment for any offence involving moral turpitude.

(2)

In case of dispute or doubt, the Syndicate shall determine whether a person is disqualified under sub-section (1) and its decision shall be final.

20.

Disqualification for election or nomination to Syndicate and Academic Council in certain cases.

(1)

Notwithstanding anything contained in sections 21 and 24, no person who has held office as a member for a total period of six years in the syndicate or the Academic Council or in both of the University shall be eligible for election or nomination to either of the said two authorities:

Provided that for the purpose of computing the total period of six years referred to in this sub-section, the period of three years during which a person held office in one authority either by election or by nomination and the period of three years during which he held office in another authority either by election or by nomination shall be taken into account and accordingly such person shall not be eligible for election or nomination to either Syndicate or the Academic Council:

Provided further that for the purpose of this sub-section, if a person who has held office for a period not less than one year in any one of the authorities referred to in this sub-section in a casual vacancy shall be deemed to have held office for a period of three years in that authority:

Provided also that, for the purpose of this sub-section, if a person was elected or nominated to one authority and such person become a member of another authority by virtue of the membership in the first mentioned authority, the period for which he held office in the first mentioned authority alone shall be taken into account.

(2)

Nothing in sub-section (1) shall have application in respect of-

(i)

ex-officio members referred to in section 21;

(ii)

[ex officio members referred to in Section 24.]

[Substituted by Act No. 25 of 2010, dated 11.06.2010.]

21.

Syndicate.

(1)

The Chancellor shall, as soon as may be, after the first ; Vice-Chancellor is appointed under section 54, constitute the Syndicate,

(2)

The Syndicate shall, in addition to the Vice-Chancellor, consist of the following members, namely:-

Class I - Ex-officio Members.

(a)

The Secretary to Government, in-charge of Higher Education;

(b)

The Secretary to Government, in-charge of Industries;

(c)

The Secretary to Government, in-charge of Information Technology;

(d)

The Secretary to Government, in-charge of Law; and

(e)

The Director of Technical Education.

Class II - Other Members.

(a)

One member from among the Chairmen of the Faculties nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(b)

One member from among the Professors and Head of the Departments of the Government engineering colleges, nominated by the Chancellor on the recommendation of the Government;

(c)

Two members representing Public and Private Sectors, Industries and Research Institutions having special knowledge and practical experience in Industry and Commerce, nominated by the Chancellor on the recommendation of the Government;

(d)

Two members from the Principals of the affiliated colleges® nominated by the Chancellor on the recommendation of the Government;

(e)

Two members from among the managements of the affiliate® aided and self-financing engineering colleges, nominated by the Chancellor on the recommendation of the Government; and

(f)

One member elected by the Members of the Legislative Assembly of the State from among themselves;

(3)

The Vice-Chancellor shall be the ex-officio Chairperson of the Syndicate.

(4)

(i)

In case the Secretary to Government, in-charge of Higher Education, the Secretary to Government, in-charge of Industries or the Secretary to Government, in-charge of Information and Technology or the Secretary to Government, in-charge of Law, is unable to attend the meetings of the Syndicate, for any reason, he may depute any officer of his department, not lower in rank than that of Deputy Secretary to Government to attend the meetings;

(ii)

In case the Director of Technical Education is unable to attend the meetings of the Syndicate for any reason, he may depute any Officer of the department, not lower in rank than that of Deputy Director, to attend the meetings.

(5)

(a)

Save as otherwise provided, the members of the Syndicate, other than the ex-officio members, shall hold office for a period of three years and such members shall be eligible for election or nomination for another period of three years.

(b)

Where a member is elected or nominated to the Syndicate in a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Syndicate who is elected or nominated in his capacity as a member of a particular electorate or body, or the holder of a particular appointment, shall cease to be a member of the Syndicate from the date on which he ceases to be a member of that electorate or body, or the holder of that appointment, as the case may be:

Provided further that where an elected or nominated member of the Syndicate is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Syndicate ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Syndicate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(6)

When a person ceases to be a member of the Syndicate, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Syndicate.

(7)

The members of the Syndicate shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this sub-section shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(8)

A member of the Syndicate, other than ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member, and the resignation shall take effect from the date of its acceptance by the Chancellor.

22.

Powers of Syndicate.

(1)

The Syndicate shall have the following powers, namely:-

(a)

to make statutes and amend or repeal the same;

(b)

to make ordinances and amend or repeal the same;

(c)

to co-operate with other Universities, other academic authorities and colleges in such manner and for such purposes as it may determine;

(d)

to provide for instruction and training in such branches of learning as it may think fit;

(e)

to prescribe the conditions for approving colleges or institutions in which provision is made for the preparation of students for titles or diplomas of the University and to withdraw such approval and also to specify the academic year in relation to such colleges and institutions;

(f)

to provide for research and advancement and dissemination of knowledge;

(g)

to institute [Assistant Professorships, Associate Professorships]

[Substituted for 'Lectureships, Readerships' by Act No. 25 of 2010, dated 11.06.2010.]

, Professorships and any other teaching posts required by the University;

(h)

to prescribe the conditions for affiliating colleges to the University and to withdraw affiliation from colleges and also to specify the academic year in relation to such colleges and institutions;

(i)

to prescribe the manner in which, and the conditions subject to which, a college may be designated as an autonomous college and such designation may be cancelled;

(j)

to provide for such lectures and instructions for students of University colleges, affiliated colleges and approved colleges as the Academic Council may determine and also to provide for lectures and instructions to persons not being students of colleges and to grant diplomas to them;

(k)

to provide for the inspection of all colleges and hostels;

(l)

to institute degrees, titles, diplomas and other academic distinctions;

(m)

to confer degrees, titles, diplomas and other academic distinctions on persons who-

(i)

shall have pursued an approved course of study in University college or laboratory or in an affiliated or approved college or have been exempted therefrom in the manner prescribed and shall have passed the prescribed examinations of the University;

(ii)

shall have carried on research under conditions prescribed;

(n)

to confer honorary degrees or academic distinctions on the recommendations of not less than two-third of the members of the Syndicate;

(o)

to establish and maintain hostels;

(p)

to institute fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes;

(q)

to prescribe the fees to be charged for the approval and affiliation of colleges, for admission to the examinations, degrees, titles and diplomas of the University, for the registration of graduates, for the renewal of such registration; and for all or any of the purposes specified in section 4;

(r)

to consider and take such action as it may deem fit on the annual report, the annual accounts and the financial estimates;

(s)

to institute a University Extension Board and to maintain it;

(t)

to institute publication bureau, students' unions, employment bureau and University athletic clubs and to maintain them;

(u)

to enter into any agreement with the Central or any State Government or with a private management for assuming the management of any institutions and for taking over its properties and liabilities or for any other purposes not repugnant to the provisions of this Act;

(v)

to make statutes regulating the method of election to the authorities of the University and the procedure at the meeting of the Academic Council, Syndicate and other authorities of the University and quorum of members required for the transaction of business by the authorities of the University other than the Academic Council;

(w)

to hold, control and administer the properties and funds of the University;

(x)

to direct the form, custody and use of the common seal of the University;

(y)

to regulate and determine all matters concerning the University in accordance with this Act, the statutes, the ordinances and the regulations;

(z)

to administer all properties and funds placed at the disposal of the University for specific purposes;

(aa)

(i)

to appoint the [University Assistant Professors, University Associate Professors]

[Substituted for 'University Lecturers, University Assistant Professors, University Readers' by Act No. 25 of 2010, dated 11.06.2010.]

, University Professors and the teachers of the University, fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;

(ii)

to prescribe the mode of appointment of administrative and other similar posts and fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;

(ab)

to suspend and take disciplinary action on the [University Assistant Professors, University Associate Professors]

[Substituted for 'University Lecturers, University Assistant Professors, University Readers' by Act No. 25 of 2010, dated 11.06.2010.]

, University Professors and the teachers and other employees of the University;

(ac)

to accept, on behalf of the University, endowments, bequests, donations, grants and transfers of any movable and immovable properties made to it;

(ad)

(i)

to raise, on behalf of the University, loans from the Central or any State Government or the public or any corporation owned or controlled by the Central or any State Government; and

(ii)

to borrow money, with the approval of the Government, on the security of the property of the University for the purposes of the University;

(ae)

to affiliate colleges within the University area to the University and to recognise colleges as approved colleges;

(af)

to designate any college as an autonomous college to cancel such designation;

(ag)

to recognise hostels not maintained by the University and to suspend or withdraw recognition of any hostel which is not conducted in accordance with the ordinance and the conditions imposed thereunder;

(ah)

to arrange for and direct, the inspection of all University colleges, affiliated and approved colleges and hostels;

(ai)

to prescribe the qualifications of teachers in University colleges, affiliated and approved colleges and hostels;

(aj)

to award fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes in accordance with the statutes;

(ak)

to charge and collect such fees as may be prescribed;

(al)

to conduct the University examinations and approve and publish the results thereof;

(am)

to make ordinances regarding the admission of students to the University or prescribing examinations to be recognised as equivalent to University examinations;

(an)

to appoint members to the Boards of Studies;

(ao)

(i)

to appoint examiners, after consideration of the recommendation of the Boards of Studies; and

(ii)

to fix their remuneration;

(ap)

to supervise and control the residence and discipline of the students of the University departments and constituent colleges and make arrangements for securing their health and well-being;

(aq)

to institute and manage University centres, University colleges and laboratories, libraries, museums, institutes of research and other institutions established or maintained by the University;

(ar)

to manage hostels instituted by the University;

(as)

to regulate the working of the University Extension Board;

(at)

to manage any publication bureau, students' unions, employment bureau and University athletic clubs instituted by the University;

(au)

to review the instruction and teaching of the University;

(av)

to promote research within the University and to require reports, from time to time, of such research;

(aw)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by this Act or the statutes, ordinances and regulations; and

(ax)

to delegate any of its powers to the Vice-Chancellor, to a committee from among its own members or to a committee appointed in accordance with the statutes.

(2)

The Syndicate may consult the Academic Council in respect of any matter where it considers such consultation is necessary.

23.

Meetings of Syndicate.

- The Syndicate shall meet at least once in every two months at such time and places and shall, subject to the provisions of sub-sections (2) and (3), observe such rules of procedure in regard to transaction of business at its meetings including the quorum at meetings as may be prescribed.

(2)

The Vice-Chancellor or in his absence any member chosen by the members present, shall preside at a meeting of the Syndicate.

(3)

All questions at any meeting of the Syndicate shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(4)

(a)

The Syndicate may, for the purpose of consultation, invite any person having special knowledge or practical experience in any subject under consideration to attend any meeting. Such person may speak in, and otherwise take part in the proceedings of such meeting, but shall not be entitled to vote.

(b)

The person so invited shall be entitled to such daily and travelling allowances as are admissible to a member of the Syndicate.

24.

Academic Council.

(1)

The Academic Council shall consist of the following members, namely:-

Class I - Ex-officio Members

(a)

The Chancellor;

(b)

The Chairmen of Faculties;

(c)

The Director of Library of the University;

(d)

The Principals of all the Government and Government Aided Engineering Colleges.

Class II - Other Members

(a)

Eight members from among the Professors of the University, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(b)

Fifteen members from among the Principals of the affiliated Colleges, nominated by the Chancellor on the recommendations of the Government;

(c)

Three educationalists having proficiency in matters relating to education, research and educational administration, general and technical, nominated by the Chancellor on the recommendations of the Government;

(d)

Three members from among the Chief Engineers or General Managers from the Departments of the State Government, Railways, Military Engineering Services, Defence, Post and Telegraphs, Telephones and other autonomous organizations in the State, nominated by the Chancellor on the recommendations of the Vice-Chancellor;

(e)

Three persons from private industries and research organizations having proficiency in the matters relating to industries and research, nominated by the Chancellor on the recommendations of the Government;

(f)

Three persons from public sector industries of the Central and State Departments in the State having proficiency in matter relating to industries and research, nominated by the Chancellor on the recommendations of the Government;

(g)

Three persons from Professional Engineering Societies or institutions or bodies or associations, nominated by the Chancellor on the recommendations of the Government;

(h)

Three persons of eminence from Small Scale Industries or Entrepreneurship Development Board or Apprenticeship Board of both Central and State Governments, nominated by the Chancellor on the recommendations of the Vice-Chancellor;

(i)

One person from among the teachers of each of the institutions given below, nominated by the Chancellor on the recommendations of the Vice-Chancellor.

(i)

Indian Institute of Science, Bangalore.

(ii)

Indian Institute of Technology, Chennai.

(iii)

Indian Institute of Management, Bangalore; and

(iv)

National Institute of Technology, Tiruchirappalli.

(j)

Members of the Syndicate not included in any of the above items:

Provided that any Chairperson of a Board of Studies may be invited to attend a meeting if his special knowledge may be of relevance to the items for discussion at the meeting.

(2)

(i)

In case the Secretary to Government in-charge of Higher Education, or the Secretary to Government, in-charge of Industries or the Secretary to Government, in-charge of Information and Technology or the Secretary to Government, in-charge of Law, who is a member of academic council by virtue of item (j) under Class II - other members in sub-section (1) is unable to attend the meetings of the Academic Council for any reason, he may depute any officer of his department, not lower in rank than that of Deputy Secretary to Government to attend the meetings;

(ii)

In case the Director of Technical Education who is a member of the academic council, by virtue of item (j) under Class II - other members in subsection (1) is unable to attend the meetings of the academic council for any reason, he may depute any officer of the department, not lower in rank than that of Deputy Director, to attend the meetings.

(3)

(a)

Save as otherwise provided, elected and nominated member of the Academic Council shall hold office for a period of three years and such member shall be eligible for election or nomination for another period of three years.

(b)

Where a member is elected or nominated to the Academic Council to a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Academic Council who is elected or nominated in his capacity as a member of a particular electorate or body or the holder of a particular appointment, shall cease to be a member of the Academic Council from the date on which he ceases to be a member of that electorate or body, or the holder of that appointment, as the case may be:

Provided further that where an elected or a nominated member of the Academic Council is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Academic Council ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be member of the Academic Council by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(4)

When a person ceases to be a member of the Academic Council, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Academic Council.

(5)

The members of the Academic Council shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this sub-section shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(6)

A member of the Academic Council other than an ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member and the resignation shall take effect from the date of its acceptance by the Chancellor.

25.

Powers and functions of the Academic Council.

(1)

The Academic Council shall be the principal academic body of the University and shall subject to the provisions of the Act and the statutes have the control and general regulation of teaching and examination in the University and be responsible for the maintenance of the standards thereon. In addition, it shall also act as the body to review the broad policies and programmes of the University.

(2)

The Academic Council shall have the following powers and function as the principal academic body of the University:-

(a)

to exercise general control on teaching and other educational programmes and maintain and promote the standards thereof;

(b)

to make regulations and amend or repeal the same;

(c)

to make regulations-

(i)

regarding the admission of students to the University and the number of students to be admitted;

(ii)

regarding the courses of study leading to degrees, diplomas and other academic distinctions;

(iii)

regarding the conduct of examinations and maintenance and promotion of standards of education;

(iv)

prescribing equivalence of examinations, degrees, diplomas and certificates of other Universities, colleges, institutions and Boards;

(v)

regarding industrial training where such training forms part of the requirements for the degree, diploma or other academic distinctions; and

(vi)

for the assessment, evaluation and grading of students performance;

(d)

to advise the Syndicate on all academic matters including the control and management of libraries;

(e)

to make recommendations to the Syndicate for the institution of Professorship, [Associate Professorship, Assistant Professorship]

[Substituted for 'Readership, Lecturership' by Act No. 25 of 2010, dated 11.06.2010.]

and other teaching posts including posts in research and in regard to the duties and emoluments thereof;

(f)

to formulate, modify or revise schemes for the constitution or reconstitution of departments of teaching and research;

(g)

to make recommendations to the Syndicate regarding post-graduate teaching and research;

(h)

to make recommendations to the Syndicate regarding the qualifications to be prescribed for teaching in the University;

(i)

to make recommendations to the Syndicate for the conferment of honorary degrees or other distinctions;

(j)

to review and act upon the proposals of Boards of Studies in formulating rules, regulations, syllabi and methods of evaluation, introduction of new courses and modification of existing courses;

(k)

to make recommendations to the Syndicate regarding institution of fellowships and scholarships;

(l)

to recommend to the Syndicate measures for promoting collaboration between industries and Governmental employers on the one hand and the University on the other;

(m)

to delegate to the Vice-Chancellor or to any of the committees of the Academic Council, any of its powers; and

(n)

to assess and make recommendations laying down standards of accommodation, equipment, apparatus, library, maintenance and other physical facilities required for each faculty;

(3)

Subject to the other provisions of this Act, the Academic Council in its capacity as a reviewing body shall have the following powers and functions, namely:-

(a)

to review, from time to time, the broad policies and programmes of the University and to suggest measures for the improvement and development of the University;

(b)

to advise the Chancellor in respect of any matter, which maybe referred to it for advice; and

(c)

to exercise such other powers and perform such other functions as may be prescribed by the statutes.

26.

Meetings of the Academic Council.

(1)

The Academic Council shall meet at least twice in every year on dates to be fixed by the Vice-Chancellor. One of such meetings shall be called the annual meeting. The Academic Council may also meet at such other times as it may, from time to time, determine.

(2)

One third of the total strength of the members of the Academic Council shall be the quorum required for a meeting of the Academic Council:

Provided that such quorum shall not be required at a convocation of the University, or a meeting of the Academic Council held for the purpose of conferring degrees, titles, diplomas or other academic distinctions.

(3)

The Vice-Chancellor may, whenever he thinks fit, and shall upon a requisition in writing signed by not less than fifty per cent of the total members of the Academic Council, convene a special meeting of the Academic Council.

27.

Finance Committee.

(1)

The Finance Committee shall consist of the following members, namely:-

(a)

Vice-Chancellor;

(b)

Secretary to Government, in-charge of Finance;

(c)

Secretary to Government, in-charge of Higher Education;

(d)

three members nominated by the Syndicate from among its members of whom one shall be a Professor and one shall be a person nominated to the Syndicate by the Chancellor;

(2)

If for any reasons the Secretary to Government, Finance Department or the Secretary to Government, Higher Education Department is unable to attend the meetings of the Finance Committee, he may depute any officer of his department not lower in rank than that of the Deputy Secretary to Government.

(3)

The Vice-Chancellor shall be the ex-officio Chairperson and the Finance Officer shall be the ex-officio Secretary to the Finance Committee.

(4)

All the members of the Finance Committee, other than the ex-officio members shall hold office for a period of three years.

(5)

The Finance Committee shall meet at least twice in every year to examine the accounts and to scrutinize proposals for expenditure.

(6)

The annual accounts of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Syndicate for approval.

(7)

The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year based on the income and resources of the University.

(8)

The Finance Committee shall-

(a)

review the financial position of the University, from time to time;

(b)

make recommendation to the Syndicate on every proposal involving investment or expenditure for which no provision has been made in the annual financial estimates or which involves expenditure excess of the amount provided for in the annual financial estimates;

(c)

prescribe the methods and procedure and forms for maintaining the accounts of the University, its departments and its constituent colleges;

(d)

make recommendations to the Syndicate on all matters relating to the finances of the University; and

(e)

perform such other functions as may be prescribed.

(9)

The Financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments. The said estimates, as modified by the Finance Committee, shall, then, be laid before the Syndicate for consideration. The Syndicate may accept the modifications made by the Finance Committee.

28.

Planning Board.

(1)

There shall be constituted a Planning Board of the University which shall advise generally on the planning and development of the University¹ and review the standard of education and research in the University.

(2)

The Planning Board shall consist of the following members, namely:-

(a)

the Vice-Chancellor, who shall be the ex-officio Chairperson of the Board; and

(b)

not more than eight persons of high academic standing.

(3)

The members of the Planning Board shall be appointed by the Chancellor on the recommendations of the Vice-Chancellor and shall hold office for such period as he may determine.

(4)

The Planning Board shall, in addition to all other powers vested in it by this Act, have the right to advise the Syndicate and the Academic Council on any academic matter.

29.

Boards of Studies.

- There shall be a Board of Studies attached to each Department of teaching. The constitution and powers of the Boards of Studies shall be such as may be prescribed.

30.

Constitution and functions of Faculties.

(1)

The University having regard to the objectives and its functions, may constitute such faculties as may be prescribed by statutes.

(2)

The constitution and function of the faculties shall, in all other respects, be such as may be prescribed by statutes.

(3)

Each Faculty shall comprise of such departments of teaching as may be prescribed in the statutes.

31.

Constitution of other authorities.

- The constitution and powers of such other bodies, as may be declared by the statutes to be authorities of the University, shall be such as may be prescribed.

32.

Constitution of committees and delegation of powers.

- All the authorities of the University shall have power to constitute or reconstitute committees and to delegate to them such of their powers as they deem fit; such committees shall, save as otherwise provided, consist of members of the authority concerned and of such other persons, if any, as the authority in each case, may deem fit.

Chapter V

Statutes, Ordinances and Regulations

33.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

(1)

the holding of convocation to confer degrees;

(2)

the conferment of honorary degrees and academic distinctions;

(3)

the constitution, powers and functions of the authorities of the University;

(4)

the manner of filling vacancies among members of the authorities;

(5)

the allowances to be paid to the members of the authorities and committees thereof;

(6)

the procedure at meetings of authorities including the quorum for the transaction of business at such meetings;

(7)

the authentication of the orders or decisions of the authorities;

(8)

the formation of departments of teaching at the University and constituent colleges;

(9)

the term of office and methods of appointment and conditions of service of the officers of the University other than the

Chancellor and the Pro-Chancellor;

(10)

the qualifications of the teachers and other persons employed by the University;

(11)

the classifications, the method of appointment and determination of the terms and conditions of service of teachers and other persons employed by the University;

(12)

the institution of pension, gratuity, insurance or provident fund for the benefit of the officers, teachers and other persons employed by the University;

(13)

the institution of fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes and the conditions of award thereof;

(14)

the establishment and maintenance of halls, hostels and laboratories;

(15)

the conditions for residence of students of the University in the halls and hostels and the levy of fees and other charges for such residence;

(16)

the conditions of registration of graduates and the maintenance of register thereof;

(17)

the conditions of recognition of approved institutions and of affiliation of colleges to the University;

(18)

the manner in which, and the conditions subject to which, a college may be designated as an autonomous college or the designation of such college may be cancelled and the matters incidental to the administration of autonomous colleges including the constitution or reconstitution, powers and duties of Board of Governors, Academic Council, Boards of Studies and Boards of Examiners;

(19)

the delegation of powers vested in the authorities or officers of the University; and

(20)

any other matter which is required to be or may be prescribed by the statutes.

34.

Statutes how made.

(1)

The Syndicate may, from time to time, make statutes and amend or repeal the statutes in the manner hereafter provided in this section.

(2)

The Academic Council or the Vice-Chancellor may propose to the Syndicate the draft of any statute or of any amendment to, or of repeal of, a statute, to be passed by the Syndicate and such draft shall be considered by the Syndicate at its next meeting:

Provided that the Vice-Chancellor shall not propose any amendment to any statute affecting the status, powers and constitution of any authority of the University, until such authority has been given an opportunity of expressing its opinion and the opinion so expressed shall be considered by the Syndicate.

(3)

The Syndicate may consider the draft proposed by the Academic Council and the Vice-Chancellor under sub-section (2) and may either pass the draft or reject or return it with or without amendments to the Academic Council or the Vice-Chancellor, as the case may be, for reconsideration.

(4)

(a)

Any member of the Syndicate may propose to the Syndicate the draft of a statute or of any amendments to, or of repeal of, a statute and the Syndicate may either accept or reject the draft, if it relates to matter not falling within the purview of the Academic Council.

(b)

In case such draft relates to a matter within the purview of the Academic Council, the Syndicate shall refer it for consideration to the Academic Council, which may, either report to the Syndicate that it does not approve the draft or submit the draft to the Syndicate in such form as the Academic Council may approve and the Syndicate may either pass with or without amendments or reject the draft.

(5)

A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall be submitted to the Chancellor who may assent thereto or withhold his assent. A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall have no validity until it has been assented to by the Chancellor.

35.

Ordinances.

- Subject to the provisions of this Act and the statutes, the ordinances of the University may provide for all or any of the following matters, namely:-

(a)

the admission of the students to the University and affiliated or approved colleges;

(b)

the courses of study leading to all degrees, diplomas and other academic distinctions of the University;

(c)

the conditions under which the student shall be admitted to the courses of study leading to degrees, diplomas and other academic distinctions of the University;

(d)

the conduct of examinations of the University and the conditions on which students shall be admitted to such examinations;

(e)

the manner in which exemptions relating to the admission of students to examinations may be given;

(f)

the conditions and mode of appointment and duties of examining bodies and examiners;

(g)

the maintenance of discipline among the students of the University;

(h)

the fees to be charged for courses of study, research, experiment and practical training and for admission to the examinations for degrees, diplomas and other academic distinctions of the University; and

(i)

any other matter which by this Act or the statutes is required to be, or may be prescribed by the ordinances.

36.

Ordinances how made.

(1)

Save as otherwise provided in this section, ordinances shall be made by the Academic Council.

(2)

All ordinances made by the Academic Council shall take effect from such date as may be fixed by the Academic Council, but every ordinance so made shall be submitted as soon as may be after it is made to the Syndicate and shall be considered by the Syndicate at its next meeting.

(3)

The Syndicate shall have power by a resolution passed by a majority of not less than two-thirds of the members present at such meeting, to modify or cancel any such ordinance and such ordinance shall, from the date of such resolution have, effect in such modified form or be of no such effect, as the case may be.

37.

Regulations.

(1)

The Syndicate and the Academic Council may make regulations consistent with the provisions of this Act, the statutes and the ordinances, for all or any of the matters which by this Act and the statutes and ordinances are to be provided for

by regulations and also for any other matter solely concerning such authorities.

(2)

All such regulations shall have effect from such date as the Syndicate or the Academic Council, as the case may be, may appoint in that behalf.

(3)

Each of the authorities referred to in sub-section (1) shall make regulations providing for the giving of notice to the members thereof of the date of meeting and of the business to be considered at the meetings and for the keeping of the proceedings of the meetings.

(4)

The Syndicate may direct the amendment in such manner as it may specify, of any regulation made under this section or the annulment of any regulation made thereunder by itself or by the Academic Council.

Chapter VI

Admission and Residence of Students

38.

Admission to University courses.

(1)

No person shall be admitted to a course of study in the University for admission to the examinations for degrees, titles or diplomas of the University unless he-

(a)

has passed the examination prescribed therefor; and

(b)

fulfills such other academic conditions as may be prescribed by the University.

(2)

Every candidate for a University examination shall, unless exempted from the provisions of this sub-section by a special order of the Syndicate made on the recommendation of the Academic Council, be enrolled as a member of a University college or laboratory or of an affiliated or approved college, as the case may be. Any such exemption may be made subject to such conditions as the Syndicate may think fit.

(3)

Students exempted from the provisions of sub-section (2) and students admitted, in accordance with the conditions prescribed, to courses of study other than courses of study for a degree, shall be non-collegiate students of the University.

39.

Admission to University examinations.

- No candidate shall be admitted to any University examination unless he is enrolled as a member of a University college or laboratory or of an affiliated or approved college and has satisfied the requirements as to the attendance required under the regulations for the same or unless he is exempted from such requirements of enrollment or attendance or both by an order of the Syndicate passed on the recommendation of the Academic Council made under the regulations prescribed. Exemptions granted under this section shall be subject to such conditions as the Syndicate may think fit.

40.

Attendance qualification for University examination.

- No attendance at instruction given in any college or institution, other than that conducted, affiliated or approved by the University, shall qualify for admission to any examination of the University.

41.

Residence and hostel.

- Every student of the University other than a non-collegiate student shall be required to reside in a hostel or under such other conditions as may be prescribed.

Chapter VII

University Funds, Annual Report and Accounts

42.

General funds.

- The University shall have General Fund to which shall be credited-

(a)

its income from fees, grants, donations and gifts, if any;

(b)

any contribution or grant made by the Central Government or any State Government or any local authority or the University Grants Commission or any other similar body or any corporation owned or controlled by the Central or any State Government;

(c)

endowments and other receipts; and

(d)

the money borrowed by it.

43.

Other funds.

- The University may have such funds as may be prescribed by the statutes.

44.

Management of funds.

- The funds and all moneys of the University shall be managed in such manner as may be prescribed.

45.

Annual report.

- The annual report of the University shall be prepared by the Syndicate and shall be submitted to the Academic Council on or before such date as may be prescribed and shall be considered by the Academic Council at its next annual meeting. The Academic Council may pass resolutions thereon and communicate the same to the Syndicate which shall take action in accordance therewith. The Syndicate shall inform the Academic Council of the action taken by it. A copy of the report with a copy of the resolution thereon, if any, of the Academic Council shall be submitted to the Government.

46.

Annual accounts.

(1)

The annual accounts of the University, shall be submitted to such examination and audit as the Government may direct and a copy of the annual accounts and audit report shall be submitted to the Government.

(2)

The University shall settle objections raised in such audit and carry out such instructions as may be issued by the Government on the audit report.

(3)

The accounts, when audited, shall be published by the Syndicate in such manner as may be prescribed and copies thereof shall be submitted to the Academic Council at its next meeting and to the Government within three months of such publication.

(4)

The Government shall cause the annual audited accounts and annual report to be laid before the Legislative Assembly together with their comments.

Chapter VIII

Conditions of Service

47.

Pension, gratuity, etc.

(1)

The University shall institute for the benefit of its officers, teachers and other persons employed by the University, such pension, gratuity, insurance and provident fund as it may deem fit, in such manner and subject to such conditions as may be prescribed.

(2)

Where the University has so instituted a provident fund under sub-section (1), the Government may declare that the provisions of the Provident Funds Act, 1925 (Central Act XIX of 1925) shall apply to such funds as if the University were a local authority and the fund a Government Provident Fund.

(3)

The University may, in consultation with the Finance Committee, invest the Provident Fund in such manner as it may determine.

48.

Conditions of Service.

- Subject to the provisions of this Act, the appointment, procedure for selection, pay and allowances and other conditions of services of officers, teachers and other persons employed in the University shall be such as may be prescribed.

Explanation. - For the purpose of this section, the word "officers" shall not include the Chancellor and the Pro-Chancellor.

49.

Selection Committee.

- [(1) There shall be a Selection Committee for making recommendations to the Syndicate for appointment to the posts of teachers.]

[Substituted by Act No. 25 of 2010, dated 11.06.2010.]

(2)

The Selection Committee for appointment to the posts specified in sub-section (1) shall consist of the Vice-Chancellor, a nominee of the Chancellor, a nominee of the Government and such other persons as may be prescribed:

Provided that the selection for such appointment by the Selection Committee shall be made in accordance with the guidelines that may be issued by the University Grants Commission or other agencies concerned in relation to such appointment.

(3)

The Vice-Chancellor shall preside at the meetings of a Selection Committee.

(4)

The meetings of a Selection Committee shall be convened by the Vice-Chancellor.

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the ordinances.

(6)

If the Syndicate is unable to accept the recommendations made by a Selection Committee, it shall record its reasons and submit the case to the Chancellor for final orders.

(7)

Appointments to temporary posts or vacancies shall be made in the manner indicated below:-

(i)

If the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing provisions:

Provided that if the Vice-Chancellor is satisfied that in the interest of work, it is necessary to fill the vacancy, the appointment may be made on a temporary basis by a local Selection Committee referred to in sub-clause (ii) for a period not exceeding six months;

(ii)

If the temporary vacancy is for a period less than a year, appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Chairman of the Faculty concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Chairman and Head of the Department, the Selection Committee may consist of two nominees of the Vice-Chancellor:

Provided further that in case of sudden casual vacancies in teaching posts caused by death or any other reason, the Chairman of the Faculty, in consultation with the Head of Department concerned, make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment;

(iii)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under this Act, be continued in service on such temporary employment unless he is subsequently selected by a local Selection Committee or a regular Selection Committee, for a temporary or a permanent appointment, as the case may be.

50.

Terms and conditions of service of Heads of Departments.

(1)

Each Department of the University shall have a Head who shall be a Professor or Director and whose duties and functions and terms and conditions of appointment shall be such as may be prescribed by the ordinances:

Provided that if there is more than one Professor in any Department, the Head of the Department shall be appointed in the manner prescribed by the ordinances:

Provided further that in a Department where there is no Professor, [an Associate Professor or an Assistant Professor]

[Substituted for 'an Assistant Professor or a Reader' by Act No. 25 of 2010, dated 11.06.2010.]

may be appointed as Head of the Department in the manner prescribed by the ordinances.

(2)

It shall be open to a Professor or [an Associate Professor or an Assistant Professor]

[Substituted for 'an Assistant Professor or a Reader' by Act No. 25 of 2010, dated 11.06.2010.]

to decline the offer of appointment as lead of the Department.

(3)

A person appointed as Head of the Department shall hold office as such for a period of three years and shall be eligible for reappointment.

(4)

A Head of the Department may resign his office at any time during his tenure of office.

(5)

A Head of the Department shall perform such functions as may be prescribed by the ordinances.

51.

Chairmen of Faculties.

(1)

Every Chairman of Faculty shall be appointed by the Vice-Chancellor from among the Professors in the Faculty for a period of three years and he shall be eligible for reappointment:

Provided that a Chairman, on attaining the age of sixty years, shall cease to hold office as such:

Provided further that if at any time there is no Professor in a Faculty, the Vice-Chancellor shall exercise the powers of the Chairman of the Faculty.

(2)

When the office of the Chairman is vacant or when the Chairman is, by reason of illness, absence or any other cause, unable to perform his duties of his office, the duties of his office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Chairman shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. The Chairman shall have such other functions as may be prescribed by the ordinances.

(4)

The Chairman shall have the right to be present and to speak at any meeting of the Board of Studies or Committees or the Faculty, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

Chapter IX

Transfer of Colleges

52.

Transfer of certain colleges to the University.

(1)

Notwithstanding anything contained in the [Anna University of Technology, Tiruchirappalli]

[Substituted for 'an Assistant Professor or a Reader' by Act No. 25 of 2010, dated 11.06.2010.]

Act, 2006 (Tamil Nadu Act

41 of 2006

) (hereinafter referred to as the 2006 Act) the statutes, ordinances, regulations and orders made thereunder, on and from the appointed day, the colleges in the University area shall be disaffiliated from the Anna University, Chennai to

which they were affiliated on the date immediately preceding such day.

(2)

The Government may, at any time after the appointed day, transfer to the University any of their lands for its use on such terms and conditions as they deem proper.

(3)

The Government may, at any time after the appointed day, transfer to the University the control and management of any of their colleges and institutions situated within the University area on such terms and conditions as they deem proper.

(4)

Notwithstanding anything contained in any other law relating to the establishment of a University in the State or the statutes, ordinances, regulations and order made thereunder, on and from the date to be notified by the Government, the colleges or institutions referred to in sub-section (3) shall be disaffiliated from the University to which they were affiliated on the date, immediately preceding the notified date and shall be affiliated to the University.

53.

Tamil Nadu Act

41 of 2006

not to apply.

(1)

Subject to the provisions of sub-sections (2) to (8), the 2006 Act shall, with effect on and from the appointed day, cease to apply in respect of the areas to which the provisions of this Act extend.

(2)

Such cessor shall not affect-

(a)

the previous operation of the 2006 Act in respect of the areas to which the provisions of this Act extend, or

(b)

any penalty, forfeiture or punishment incurred in respect of any offence committed against the 2006 Act, or

(c)

any investigation, legal proceeding or remedy in respect of such penalty, forfeiture or punishment, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(3)

Notwithstanding anything contained in sub-section (1), all statutes, ordinances and regulations made under the 2006 Act and in force on the appointed day, shall, in so far as they are not inconsistent with this Act, continue to be in force in the University area until they are replaced by the statutes, ordinances and regulations to be made under this Act.

(4)

Notwithstanding anything contained in this Act, the statutes, ordinances and regulations continued in force under sub-section (3) or made under this Act, every person who immediately before the appointed day was a student of a college within the University area affiliated to, or approved by, the Anna University, Chennai shall be permitted to complete his course of study in the Anna University, Chennai and the Anna University, Thirunelveli shall make arrangements for the instruction, teaching and training for such students for such period and in such manner as may be determined by the Anna University, Thirunelveli in accordance with the course of study in the Anna University, Chennai and such students shall, during such period, be admitted to the examinations held or conducted by the Anna University, Chennai and the corresponding degree, diploma or other academic distinctions of the Anna University, Chennai shall be conferred upon the qualified students on the result of such examinations, by the Anna University, Chennai.

(5)

All colleges within the University area which immediately before the appointed day,-

(a)

continue to be affiliated to, or recognised by the Anna University, Chennai: and

(b)

provide courses of study for admission to the examination for degrees of the Anna University, Chennai, shall be deemed to be colleges affiliated to the Anna University, Thirunelveli under this Act and the provisions of this Act shall, as far as may, apply accordingly.

(6)

All colleges within the University area which immediately before the appointed day, continue to be recognised by the Anna University, Chennai providing courses of study for admission to the examinations of the said University, for degrees and diplomas, shall be deemed to be colleges approved by the Anna University, Thirunelveli under this Act, and the provisions of this Act, shall as far as may, apply accordingly.

(7)

All hostels within the University area which continue to be recognised by the [Anna University of Technology, Tiruchirappalli]

[Substituted for 'an Assistant Professor or a Reader' by Act No. 25 of 2010, dated 11.06.2010.]

immediately before the appointed day shall be deemed to be hostels recognised by the Anna University, Thirunelveli under this Act and the provisions of this Act shall, as far as may, apply accordingly.

(8)

Subject to the provisions of sub-section (2), but without prejudice to the provisions of sub-sections (3) to (7), anything done or any action taken before the appointed day under any provision of the 2006 Act in respect of any area to which the provisions of this Act extend shall be deemed to have been done or taken under the corresponding provision of this Act and shall continue to have effect accordingly unless and until superseded by anything done or any action taken under the corresponding provision of this Act.

Chapter X

Transitory Provisions

54.

Appointment of First Vice-Chancellor.

- Notwithstanding anything contained in sub-section (1) of section 11, within three months from the appointed day, the first Vice-Chancellor shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they think fit:

Provided that a person appointed as first Vice-Chancellor shall retire from office, if during the term of his office he completes the age of sixty-five years.

55.

Appointment of first Registrar.

- Notwithstanding anything contained in sub-section (1) of section 14, within three months from the appointed day, the first Registrar shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they think fit:

Provided that a person appointed as first Registrar shall retire from office, if during the term of his office he completes the age of sixty years in the case of an University Professor and fifty-eight years in the case of a, Professor of any Government engineering college.

56.

Transitory powers of the first Vice-Chancellor.

(1)

It shall be the duty of the first Vice-Chancellor to make arrangements for constituting the Syndicate, Academic Council and such other authorities of the University within six months from the date of his appointment or such longer period not exceeding [two years]

[Substituted for the words 'one year' by Tamil Nadu Act 11 of 2009, w.e.f. 17.3.2008.]

as the Government may, by notification, specify.

(2)

The first Vice-Chancellor shall, in consultation with the Government, make such rules as may be necessary for the functioning of the University.

(3)

The authorities constituted under sub-section (1) shall commence to exercise their function on such date as the Government may, by notification, specify in this behalf.

(4)

It shall be the duty of the first Vice-Chancellor to draft such statutes, ordinances and regulations as may be necessary and submit them to the respective authorities for their disposal. Such statutes, ordinances and regulations when framed

shall be published in the Tamil Nadu Government Gazette.

(5)

Notwithstanding anything contained in this Act and these statutes and until such time an authority is duly constituted, the First Vice-Chancellor may, appoint any officer or constitute any committee temporarily to exercise and perform any of the powers and duties of such authority under this Act and the statutes.

Chapter XI

Miscellaneous

57.

Filling of casual vacancies.

- All casual vacancies among the members other than ex-officio members of any authority or other body of the University shall be filled as soon as conveniently may be, by the person or body who or which, nominated or elected the member whose place has become vacant and the person nominated or elected to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member:

Provided that vacancies arising by efflux of time among elected members of any authority or other body of the University may be filled at elections which may be fixed by the Vice-Chancellor to take place on such days not earlier than two months from the date on which the vacancies arise, as he thinks fit:

Provided further that no casual vacancy shall be filled if such vacancy occurs within six months before the date of the expiry of the term of the member of any authority or other body of the University.

58.

Proceedings of the University authorities and bodies not to be invalidated by vacancies.

- No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the existence of any vacancy or of any defect or irregularity in the election or appointment of a member of any authority or other body of the University or of any defect or irregularity in such act or proceeding not affecting the merits of the case or on the ground only that the authority or other body of the University did not meet at such intervals as required under this Act.

59.

Removal from membership of the University.

(1)

The Syndicate may-

(a)

on the recommendation of not less than two-thirds of the members of the Syndicate, remove, by an order in writing made in this behalf, the name of any person from the register of graduates; or

(b)

remove by an order in writing made in this behalf any person from membership of any authority of the University by a resolution passed by a majority of the total membership of the Syndicate and by a majority of not less than two thirds of the members of the Syndicate present and voting at the meeting, if such person has been convicted by a criminal Court for an offence which, in the opinion of the Syndicate, involves moral turpitude or if he has been guilty of gross misconduct and for the same reason, the Syndicate may withdraw any degree or diploma conferred on, or granted to, that person by the University.

(2)

The Syndicate may also by an order in writing made in this behalf remove any person from the membership of any authority of the University if he becomes of unsound mind or deaf-mute or has applied to be adjudicated or has been adjudicated as an insolvent.

(3)

No action under this section shall be taken against any person unless he has been given a reasonable opportunity to show cause against the action: proposed to be taken.

(4)

A copy of every order passed under sub-section (1) or sub-section (2), as the case may be, shall, as soon as may be after it is so passed, be communicated to the person concerned in the manner prescribed by regulations.

60.

Disputes as to contribution of University authorities and bodies.

- If any question arises whether any person has been duly elected or nominated as, or is entitled to be, a member of any authority of the University or other body of the University, the question shall be referred to the Chancellor whose decision thereon shall be final.

61.

Power to obtain information.

- Notwithstanding anything contained in this Act or in any other law for the time being in force, the Government may, by order in writing, call for any information from the University on any matter relating to the affairs of the University and the University shall, if such information is available with it, furnish to the Government with such information within a reasonable period:

Provided that in the case of information which the University considers confidential, the University may place the same before the Chancellor and the Pro-Chancellor.

62.

Registration of graduates.

- On and from the appointed day, every person ordinarily resident within the University area, who-

(a)

has been for at least three years a graduate of any University in the territory of India; or

(b)

is a registered graduate of any University in the territory of India, shall be entitled to have his name entered in the register of graduates maintained under this Act, for a period of five years on payment of such fee and subject to such conditions as may be prescribed by the statutes.

(2)

All applications for registration under sub-section (1) shall be sent to the Registrar together with the prescribed fee and such proof of qualifications as may be prescribed by the statutes.

(3)

The Registrar shall, on receipt of an application made under sub-section (2) and after making such enquiry as he deems fit, enter in the register of graduates the name of the applicant.

(4)

Every person whose name has been entered in the register of graduates under sub-section (3) shall be entitled to have such entry renewed every five years on application made in that behalf to the Registrar within such time, in such manner and on payment of such fee as may be prescribed by the statutes.

63.

Special mode of appointment.

(1)

The Syndicate may invite any person of high academic distinction and professional attainments to accept a post of Professor in the University on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(2)

The Syndicate may appoint a teacher or any other member of the academic staff working in any other University or organisation for undertaking a joint project in accordance with the manner prescribed in the ordinances.

64.

Report on affiliated colleges.

- The Syndicate shall, at the end of every three years from the appointed day, submit a report to the Government on the condition of affiliated and approved colleges within the University area. The Government shall take such action on it as they deem fit.

65.

Power to remove difficulties.

(1)

If any difficulty arises as to the first constitution or reconstitution of any authority of the University after the appointed day or otherwise in giving effect to the provisions of this Act, the Government may, by notification, make such provision, not inconsistent with the provisions of this Act, as may appear to them to be necessary or expedient for removing the

difficulty:

Provided that no such notification shall be issued after the expiry of five years from the date of establishment of the University under section 3.

(2)

Every notification issued under sub-section (1) or under any other provisions of this Act shall, as soon as possible after it is issued, be placed on the table of the Legislative Assembly, and if, before the expiry of the session in which it is so placed or the next session, the Assembly makes any modification in any such notification shall thereafter have effect only in such modified form or be of no effect as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that notification.

66.

Power of Government to give directions.

- The Government may, from time to time, issue such directions to the University, as it may deem fit, for giving effect to the provisions of this Act and it shall be the duty of the University, to comply with such directions.

67.

Removal of doubts.

- For the removal of doubts, it is hereby declared that members of the authorities of the Anna University, Chennai and [Arina University of Technology, Tiruchirrappali]

[Substituted for 'Anna University, Tiruchirrappali' by Act 25 of 2010, dated 11.6.2010.]

elected or nominated or otherwise as such members under the Anna University, Chennai Act, 1978 (Tamil Nadu Act 30 of 1978

) or under [Anna University of Technology, Tiruchirrappali]

[Substituted for 'Anna University, Tiruchirrappali' by Act 25 of 2010, dated 11.6.2010.]

Act, 2006 (Tamil Nadu Act

41 of 2006

) and from the colleges or institutions deemed to have been affiliated to the Anna University, Thirunelveli under sub-section (5) of section 53 of this Act and holding office as such members in any of the authorities of the Anna University, Chennai or [Anna University of Technology, Tiruchirrappali]

[Substituted for 'Anna University, Tiruchirrappali' by Act 25 of 2010, dated 11.6.2010.]

immediately before the date of commencement of this Act shall continue to be such members till the term of office expires.

[Substituted by Act No. 25 of 2010, dated 11.06.2010.]

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